

resolution (in
whole or in-part)
within the HRTO

Notes:

- N/A – Not applicable
- *The HRTO is unable to report on the percentage of hearings scheduled KPI for Q1 and Q2 of this fiscal year due to data limitations with their case management system. Temporary measures in the case management system were established to gather Q3 and Q4 data however, additional solutions are being examined to ensure this KPI can be reported on consistently in the future.
- **The HRTO is unable to report on the percentage of mediations scheduled KPI for Q2, Q3 and Q4 fiscal year 2023-2024 due to data limitations with their case management system. Solutions are being examined to ensure this KPI can be reported on in the future.

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Landlord and Tenant Board (LTB)

The LTB resolves applications related to residential tenancy disputes between landlords and tenants and eviction disputes in non-profit housing co-operatives.

The LTB's authority and jurisdiction are derived from the *Residential Tenancies Act, 2006* (RTA) and the *Statutory Powers Procedure Act*. The LTB is also mandated to provide information to landlords and tenants about their rights and responsibilities under the RTA.

Operational Highlights

Over the past year, the LTB continued to prioritize initiatives to address ongoing service delays and to reduce and ultimately eliminate its backlog. A comprehensive strategy that included recruiting new adjudicators and staff, the introduction of new technology (Tribunals Ontario Portal) and an enhanced scheduling strategy helped the LTB reduce application processing times and resolve 45% more cases in calendar 2023, compared to the previous year. This would have resulted in a substantial reduction in the backlog, had it not been for the 31% increase in the number of applications received by the LTB in calendar 2023, to approximately 84,000 applications. This is the second-highest number of applications that the LTB has received in a year since its creation. In addition, the LTB is seeing an increased proportion of more complex applications that require more time to hear.

The LTB held considerably more hearings in calendar 2023 than in 2022. In 2022, the LTB held just over 49,000 hearings. In 2023, the LTB held over 70,000 hearings, a 40% increase. The LTB is projecting to schedule over 100,000 hearings in calendar 2024, which will be the highest number of hearings ever scheduled at the LTB.

As of July 31, 2024, the LTB had successfully reduced its active caseload to 46,632 applications, a reduction of 12% since March 31, 2024. The timelines to hearing also significantly improved across all application types, including for L1/L9 applications (which represent over half of the LTB's total intake). By July 31, these matters were being heard within approximately 90 days on average. This is an improvement from early 2023 when it took around, on average, eight to ten months to get to a hearing.

Some of the major initiatives undertaken by the LTB in the last year to modernize its operations and improve service include:

Onboarding and Training New Adjudicators: Member and staff recruitment remained a top priority at the LTB to assist in reducing the backlog. As of March 31, 2024, the adjudicative roster comprised 75 full-time and 59 part-time adjudicators, with a new competition launched March 25, 2024 to further augment adjudicative ranks. A quality onboarding program was developed to ensure that adjudicators are hearing room-ready within a minimal amount of time and the scheduling strategy aligned with new member readiness to conduct hearings.

Tribunals Ontario Portal: Over the past year, Tribunals Ontario has been working on enhancing the case management system to improve its efficiency and usability. Ongoing updates and enhancements continued to be made to the Tribunals Ontario Portal features, functionality and processes based on feedback received from users and stakeholders. Some of these included:

- Consent box enhancements that allow users to update or correct their email address and provide informed consent to receiving email notifications from the [LTB](#)
- High-priority and frequently used order templates were added to the portal that accelerated the order drafting process and provided consistent format, language, and calculations in all orders
- An L2 application validation process to capture potentially fatal flaws prior to an application being submitted. This expedites the proceedings, reduces error-related delays, refunds, re-filing by clients, adjournments, and ultimately dismissals of applications

Technical Support Service: In April 2023, the [LTB](#) launched a dedicated technical support service to help hearing participants troubleshoot any technical issues they may face while joining their hearing on Zoom. Moderators will help these individuals join their hearing, thereby avoiding adjournments due to technical issues.

Partnership with Ontario Shared Services (OSS): In 2023, the [LTB](#) outsourced mail-outs of application acknowledgement packages to [OSS](#). This allows [LTB](#) to deliver information to parties about the application process more quickly and frees up staff time to mail out Notices of Hearing further in advance of the hearing.

New Call Centre technology: In late 2023, Tribunals Ontario introduced new call centre technology at the [LTB](#) to improve the customer service experience and service delivery. Some of the new client-focused features include caller wait time announcements and a call-back option where a caller can choose to leave their phone number and receive a return call while maintaining their spot in the queue.

Mediation blocks: The [LTB](#) implemented new Dispute Resolution Officer (DRO) assigned blocks, based on the need for mediated services. This flexible scheduling strategy allows for a pool of [DROs](#) to be assigned to tenant and L2 Case Management Hearing blocks while maintaining regular service standards for mediation services.

New consolidated email: On July 10, 2023, the [LTB](#) consolidated eight regional office email inboxes into one central email (LTB@ontario.ca). This allows for timelier triage and action of client inquires, escalations of urgent matters, consistent messaging, and improved customer service.

ServiceOntario: [LTB](#) continues to work with ServiceOntario to expand the number of locations throughout the province where users can file [LTB](#) applications and documents in person. An additional 14 sites are expected to begin accepting [LTB](#) applications and documents in the near future, bringing the total to 80 locations.

Throughout 2023-2024, the [LTB](#) continued to engage stakeholders with regular communications related to the Tribunals Ontario Portal, with the goal being to improve user experience and functionality. The [LTB](#) met with several stakeholders in 2023 including the Landlord Self-Help Centre, York Region Homelessness Prevention Program, Federation of Metro Tenants' Associations, Clinic Housing Issues Committee, and the Advocacy Centre for Tenants Ontario, among others.

Additionally, the [LTB](#) held a town hall meeting for all stakeholders in December 2023, where the Tribunals Ontario and [LTB](#) leadership teams provided an update on the major [LTB](#) initiatives and on what's being done to eliminate the backlog. They also addressed questions from stakeholders.

Statistics

Table 1: [LTB](#) Applications

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Application	2023-2024	2022-2023	2021-2022
Applications Received*	82,285	73,406**	61,705***

Applications Resolved****	88,307	52,986	61,868
Active Cases at Year-End***	53,030*****	53,057	32,800

Notes:

- *The totals for 2023-2024 and 2022-2023 include non-profit co-operative housing eviction applications filed in LTB's new case management system.
- **In the 2022-2023 Annual Report, LTB showed a figure of 73,208 total applications received. LTB has since verified the total to be 73,406.
- *** In the 2021-2022 Annual Report, the LTB showed a figure of 61,586 total applications received. That figure has been corrected due to an adding error. 61,705 is the correct total.
- ****In 2023-2024, 50% of the applications were resolved at hearing (ordered by hearing contested or uncontested, or ordered by review), 6% through mediation (mediated or ordered by hearing mediated), and 19% through withdrawals.
- *****In a small number of cases, "resolved" applications are re-opened (e.g., when the LTB grants a request for review or an order). As a result, a single application can result in more than one resolution. Therefore, the number of applications open at the end of the fiscal year does not necessarily equal the number from the previous year plus "applications received," less the "applications resolved."
- *****As of July 31, 2024, the LTB had successfully reduced its active caseload to 46,632 applications, a reduction of 12% since March 31, 2024.

Table 2: Landlord Applications Received by Type

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Case Type	Application Type	2023-2024	2022-2023	2021-2022	2020-2021
A1	Determine whether the act applies	134	138	115	96
A2	Sublet or assignment	639	532	376	383
A3	Combined application (usually includes an L1)	2,044	2,447	1,321	1,065
A4	Vary rent reduction amount	15	7	55	109
L1	Terminate & evict for non-payment of rent	41,386	37,690	31,240	24,481
L2	Terminate for other reasons and evict	16,677	15,354	13,937	11,031
L3	Termination – tenant gave notice or agreed	2,936	2,656	2,289	1,391
L4	Terminate the tenancy – failed settlement	5,535	3,366	3,545	1,551
L5	Rent increase above the guideline	912	605	613	404
L6	Review of provincial work order	0	0	0	1

L7	Transfer tenant to care home	3	2	2	6
L8	Tenant changed locks	52	46	35	25
L9	Application to collect rent	858	615	931	1,104
L10	Application to collect money a former tenant owes	1,261	992	3	N/A
Total		72,452	64,450	54,459	41,647

Table 3: Tenant Applications Received by Type

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Case Type	Application Description	2023-2024	2022-2023	2021-2022	2020-2021
A1	Determine whether the act applies	131	114	80	64
A2	Sublet or assignment	108	72	59	74
A3	Combined application	1,594	1,372	860	583
A4	Vary rent reduction amount	0	0	1	1
T1	Rent rebate (e.g., illegal rent)	1,359	1,105	843	718
T2	Tenant rights	3,184	2,874	2,991	3,145
T3	Rent reduction	110	116	99	68
T4	Failed rent increase above guideline	16	25	8	4
T5	Bad faith notice of termination	1,113	1,067	550	316
T6	Maintenance	1,790	1,697	1,751	1,795
T7	Suite meters	15	13	4	7
Total		9,420	8,455	7,246	6,775

Table 4: Co-Op Applications Received by Type

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Case Type	Application Description	2023-2024	2022-2023	2021-2022	2020-2021
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C1	Application to end the occupancy and evict the member based on non-payment of regular monthly housing charges and to collect the housing charges that the co-op member owes	202	230	124	88
C1/2	Combined C1 and C2 applications	96	98	61	32
C2	Application to end the occupancy of the member unit and evict the member	94	131	67	73
C3	Application to end the occupancy and evict the member – based on the member's consent or notice	3	1	3	3
C4	Application to end the occupancy of the member unit and evict the member because the member failed to meet conditions of a settlement/order	18	41	45	22
Total		413	501	300	218

Table 5: Call Centre

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Calls	2023-2024	2022-2023	2021-2022	2020-2021
Calls handled	157,561	122,933	164,521	197,927
Average time per call	5:18	5:13	5:00	5:03
Average wait time in the queue	27:48	36:33	22:46	15:57

Table 6: LTB Key Performance IndicatorsTable 6: LTB Key Performance Indicators

Landlord and Tenant Board Key Performance Indicators	Target	Q1	Q2	Q3	Q4	FY 2023-2024 Total
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	2023-2024	#	%	#	%	#	%	#	%	#	%
Volume of in-person, electronic and written hearing events held at the <u>LTB</u>	N/A										
In-Person Hearing Events		7	N/A	4	N/A	4	N/A	10	N/A	25	N/A
Electronic Hearing Events		19,155	N/A	17,544	N/A	17,192	N/A	20,207	N/A	74,098	N/A
Written Hearing Events		5	N/A	2	N/A	3	N/A	4	N/A	14	N/A
Number of eligible accommodation requests granted (in whole or in-part) by the <u>LTB</u>	N/A	116	N/A	160	N/A	194	N/A	220	N/A	690	N/A
Percentage of hearings scheduled within 50 calendar days for L1** and L9*** applications and 55 calendar days for all other applications except for L5s**** and A4s***** from the application receipt date	80%	13,960	65%	10,946	73%	11,258	81%	14,650	76%	50,814	74%
Decisions issued 20 calendar days for L1 and L9 applications and 35 calendar days for all applications except for L5's and A4's from the conclusion	N/A	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD

of the final hearing event												
Percentage of cases within the 90 calendar days case lifecycle for all applications except for L5's and A4's for the <u>LTB</u>	80%	17,941	35%	18,246	34%	17,851	32%	18,804	35%	18,804	35%	
Percentage of cases that are resolved through alternative dispute resolution (in whole or in-part) within the <u>LTB</u>	N/A	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	TBD	

Notes:

- *LTB has fully transitioned to the new Tribunals Ontario Portal case management system and is in the process of developing the necessary reports to be able to compile this data.
- N/A – Not applicable
- The definitions for each type of application referenced above are as follows:
 - **L1: Application to evict a tenant for non-payment of rent and to collect rent the tenant owes
 - ***L9: Application to Collect Rent the Tenant Owes.
 - ****L5: Application for an Above Guideline Increase.
 - *****A4: Application to Vary the Amount of a Rent Reduction.

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Licence Appeal Tribunal (LAT)

The LAT adjudicates applications and resolves disputes concerning compensation claims and licensing activities regulated by the provincial government, including the activities of delegated administrative authorities. The LAT is currently comprised of two main divisions: General Service (LAT-GS) and Automobile Accident Benefits Service (LAT-AABS).

LAT's jurisdiction and authority are derived from:

- *Accessibility for Ontarians with Disabilities Act, 2005*
- *Alcohol and Gaming Commission of Ontario Act, 2019*
- *Auto Insurance Rate Stabilization Act*
- *Bailiffs Act, 1990*
- *Building Code Act, O. Reg. 332/12 Division C, Part 3*
- *Cannabis License Act, 2018*
- *Child Care and Early Years Act, 2014*
- *Child, Youth and Family Services Act, 2017*
- *Collection and Debt Settlement Services Act, 1990*
- *Compulsory Automobile Insurance Act*